

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julia Sapienza	Team: Squad #05	CCRB Case #: 202403962	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 04/06/2024 6:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/6/2025	Precinct: 73
Date/Time CV Reported Sun, 04/07/2024 9:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/23/2024 9:42 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Jon Derise	15542	938331	073 PCT
2. PO Ivan Guan	20396	977170	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Sabrinna Moore	17870	958949	073 PCT
2. SGT Troy Peacock	00507	940553	073 PCT
3. PO Everett Kerr	28828	967139	073 PCT
4. PO David Parache	01890	961067	073 PCT
5. SGT Mahmudul Bhuiyan	04668	953682	073 PCT
6. PO Tyler Barnett	25814	968955	073 PCT
7. PO Hayden Barry	13513	941396	SRG 3
8. PO Wendell Kornegay	23426	900426	SRG 3
9. SGT Rafal Korycki	00942	952946	073 PCT
10. SGT Ernan Vega	02783	948153	SRG 3
11. PO Justin Anormaliza	06408	975965	073 PCT
12. PO Charles Markert	26227	967184	073 PCT
13. PO Ryan Hoffner	17255	971773	073 PCT
14. PO Alexander Saenz	15318	961225	HBK RT
15. PO Nicole Dreyfus	25075	969665	HBK RT
16. PO Nolan Grabowski	25432	969099	073 PCT
17. LT Imran Khan	00000	956020	073 PCT
18. PO Sali Cerimi	08390	965974	073 PCT
19. PO Johan Mercedes	14182	977277	073 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Jon Derise	Abuse: Police Officer Jon Derise forcibly removed § 87(2)(b) to the hospital.	A . Substantiated
B . PO Jon Derise	Force: Police Officer Jon Derise used pepper spray against § 87(2)(b)	B . Substantiated
C . PO Ivan Guan	Force: Police Officer Ivan Guan used pepper spray against § 87(2)(b)	C . Unfounded

Case Summary

On April 7, 2024, § 87(2)(b) filed this complaint by phone with the IAB, generating original log number § 87(2)(b). The CCRB received the complaint on April 23, 2024.

On April 6, 2024, at approximately 6:10 p.m., in front of § 87(2)(b) in Brooklyn, § 87(2)(b) got into a dispute with a motorist. PO Ivan Guan and PO Jon DeRise of the 73rd Precinct arrived, and PO DeRise spoke to both parties. PO DeRise decided to forcibly remove § 87(2)(b) to the hospital (**Allegation A: Abuse of Authority, substantiated**). PO DeRise used pepper spray against § 87(2)(b) (**Allegation B: Force, substantiated**). PO Guan allegedly used pepper spray against § 87(2)(b) (**Allegation C: Force, unfounded**). The incident did not result in any arrests or summonses.

The investigation obtained BWC footage from numerous officers, including PO DeRise and PO Guan (**BR 3**). The investigation also obtained BWC footage from PO DeRise (**BR 4**) and PO Guan (**BR 5**) from an incident which occurred shortly before this incident. All references to video footage below use the time-stamp from the video player, and not the time-stamp of any on-screen clock embedded in the footage itself.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Jon DeRise forcibly removed § 87(2)(b) to the hospital.

It is undisputed that PO DeRise personally made the decision that § 87(2)(b) was emotionally disturbed and required forcible removal to the hospital.

In his CCRB statement, § 87(2)(b) (**BR 6**) said that there was a sedan parked in front of the driveway of § 87(2)(b) and his van was parked in front of the sedan, and he needed space to back up to leave. § 87(2)(b) asked the driver to leave the parking space. The driver refused to move. § 87(2)(b) asked again, and the driver pulled out a knife. § 87(2)(b) responded by pulling out a plastic tube, similar to a broom handle, that was about ten inches long, and said, “If you swing that knife at me, I’ll hit you with this pole.” The driver swung the knife at § 87(2)(b) who put away the pole and told the nearby neighbors to call the police. The driver pulled away from the curb and dragged the knife along the side of § 87(2)(b) van, leaving visible damage on the side of the van. § 87(2)(b) ran after the vehicle and stood in front of it, in an attempt to stop the driver from leaving before the police arrived. After PO DeRise spoke separately to § 87(2)(b) and to the motorist and his passengers, PO DeRise told § 87(2)(b) he was under arrest and began trying to handcuff him.

§ 87(2)(b) records from § 87(2)(b) Hospital § 87(2)(a) – PHL 18(6) the notes state that § 87(2)(b) calmed down after officers left, that he was linear and pleasant, and that there was no concern for any acute psychosis.

PO DeRise recounted in his CCRB interview (**BR 7**) that there were three 911 calls that occurred at approximately the same time. The first was a call for a black man who was an emotionally disturbed person (EDP) in a nail salon at § 87(2)(b). When PO DeRise and PO Guan arrived, the people at the nail salon said that nothing had happened and that nobody called the police. The second 911 call was regarding a call for a black man harassing someone at the intersection of Pitkin Avenue and Bristol Street. The third 911 call was regarding a black man

involved in a dispute outside of § 87(2)(b). When PO DeRise arrived at the intersection of Pitkin Avenue and Bristol Street in relation to the report of a black man harassing someone at the intersection, he found no one there. He looked farther up Bristol Street and saw § 87(2)(b) ongoing interaction with the motorist, which he concluded was the subject of the third 911 call. PO DeRise then concluded that the report of an EDP at the nail salon, the report of a black man harassing someone, and the report of the dispute at § 87(2)(b) must have all been about § 87(2)(b) since they all involved a black man who was creating a disturbance.

The 911 record for the report of an EDP at the nail salon (BR 8) shows that the caller said there was a man with mental health issues, with an unknown description, acting out at the business. The 911 caller was not at the nail salon and was reporting on behalf of her daughter, who had told her not to call the police. She provided her own name and phone number, but she refused to provide her daughter's name. PO Guan's BWC footage (BR 5) shows him and PO DeRise entering the nail salon and asking if anyone called the police. A woman comes to the front and says that nobody called the police. The officers ask if anything had happened or if there was anyone acting crazy, and the woman says that no one was around and nothing had happened. The officers left the nail salon about five minutes before they began interacting with § 87(2)(b).

PO DeRise's BWC footage (BR 1) shows him and PO Guan arriving at § 87(2)(b). § 87(2)(b) is upset and animated, but he is able to clearly recount that the other motorist refused to move his vehicle and dared § 87(2)(b) to touch it. § 87(2)(b) touched the vehicle, and the man swung a knife at him and then dragged it along the side of § 87(2)(b) van. § 87(2)(b) ran in front of the motorist's vehicle to force him to remain on scene. § 87(2)(b) points out the scratch on the side of his van. After § 87(2)(b) is finished, PO DeRise asks him his name, where he lives, and if he can accurately state his present location, which he answers correctly. PO DeRise then asks § 87(2)(b) to name the current president. § 87(2)(b) is frustrated by the question but answers correctly. PO DeRise then goes to speak with the driver, along with a younger woman and an older woman who were also in his vehicle. All three deny that the driver had a knife and say that § 87(2)(b) was the one who had a weapon. The younger woman then gives her account, adding that § 87(2)(b) immediately came out and began cursing at them and telling them they could not park there. They tried to explain that they were not parked and had merely been waiting for the older woman to return from the pharmacy, but § 87(2)(b) threatened that something really bad would happen if they did not move before retrieving a metal pipe from his van. He then offered to put the pipe away if the other motorist would come out and fight him "man-to-man." They all stayed inside their vehicle. They tried to drive away, but § 87(2)(b) blocked their path and began banging on the hood of their vehicle. PO DeRise asks questions about whether § 87(2)(b) swung the pipe at them or damaged their vehicle, and ultimately remarks that they do not seem particularly afraid or alarmed. He declares that it appears that § 87(2)(b) "needs to go to the hospital, for more than one reason." At 13:25, after § 87(2)(b) is in custody, PO DeRise explains the situation to a lieutenant. He says it was a dispute over a parking spot, and that § 87(2)(b) was running up and down in the street near their car and waving a metal pipe around. The other civilians were not threatened or injured, the car is not damaged, and § 87(2)(b) is "just a lunatic with a metal pipe in his hand." After arriving at the hospital at the conclusion of the incident, PO DeRise tells the staff, "He's an emotionally disturbed person who was observed running up and down, walking up and down the street with a metal pipe. He was involved in several disputes with local residents."

PO DeRise stated in his interview (BR 7) that based upon his discussion with the three individuals in the car, § 87(2)(b) behavior was causing others to fear for their safety. PO DeRise described § 87(2)(b) reported behavior as walking up and down the street with a pipe, getting involved in several disputes, and asking to fight people. This, along with an examination of

the scene and the 911 calls, factored into PO DeRise's conclusion that § 87(2)(b) needed to be taken to the hospital. PO DeRise acknowledged that the civilians did not describe § 87(2)(b) walking up and down the street threatening people with the pipe, as the BWC footage shows them only recounting that § 87(2)(b) brandished the pipe briefly before putting it back in his van. PO DeRise explained that he combined the information from the civilians with the prior calls to 911 to come to the conclusion that § 87(2)(b) had been walking around the area and threatening people with a pipe. Although PO DeRise said that § 87(2)(b) was in touch with reality, could hold a conversation, and he did not suspect him of being under the influence of drugs or alcohol, he still thought it imprudent to leave § 87(2)(b) on the street. PO DeRise could not make a medical diagnosis, but he believed that § 87(2)(b) could not care for himself because he could not handle his anger properly and was putting himself in a position where he could harm others.

Patrol Guide Procedure 221-13 (BR 9) states that an officer, and typically a supervisory officer, can take an "emotionally disturbed person" into custody if the person does not voluntarily seek medical assistance, provided that the person "appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others."

§ 87(2)(g)
[REDACTED]

It is therefore recommended that **Allegation A** be closed as **substantiated**.

Allegation (B) Force: Police Officer Jon DeRise used pepper spray against § 87(2)(b)

Allegation (C) Force: Police Officer Ivan Guan used pepper spray against § 87(2)(b)

alleged (BR 6) that he was pepper sprayed by both PO DeRise and PO Guan.

PO DeRise's BWC (BR 1, 08:00) shows him approaching § 87(2)(b) taking out his handcuffs, grabbing § 87(2)(b) wrist, and telling him that they have to take him to the hospital. § 87(2)(b) responds, "No, I'm not hurt," as PO DeRise holds his right wrist and tries to handcuff him. § 87(2)(b) repeatedly says, "Wait, wait, wait," while PO DeRise and PO Guan try to get his arms behind his back. PO DeRise tells § 87(2)(b) "Sir, you're not feeling well," and § 87(2)(b) asks why he would say that, while raising his arms to chest level. At 08:11, PO DeRise yells, "Back up!" to PO Guan, and holds his can of pepper spray aimed at § 87(2)(b) face from a distance of what appears to be no more than one foot. At 08:17, PO DeRise pepper sprays § 87(2)(b) from this same distance, as § 87(2)(b) is exclaiming, "Why would you say I'm not feeling well? I live right here!" At that moment, PO Guan still has a grip on one of § 87(2)(b) arms. After this, § 87(2)(b) breaks free of the officers' grasp and runs

towards the garage door, and it can be seen that neither of his wrists are handcuffed. The officers grapple with § 87(2)(b) arms while he continues to try to walk towards his building, pulling the officers along with him into the garage. At 09:00, the officers are able to handcuff § 87(2)(b)

PO DeRise stated (BR 7) that he was able to place a handcuff on § 87(2)(b) right wrist after he told § 87(2)(b) he was going to the hospital. § 87(2)(b) started yelling, screaming, trying to run away, and pulling his arms away. § 87(2)(b) was swinging his right hand in the air near PO DeRise's face. Because of this combative and hostile behavior, de-escalation techniques were not a viable option. If PO DeRise had let go of § 87(2)(b) the metal handcuff that was attached to his wrist posed a threat. The next level of force that was reasonable based on the circumstances was pepper spray. PO DeRise noticed that the pepper spray was not effective on § 87(2)(b) at first, and that he continued trying to run into the apartment building. The officers were eventually able to bring § 87(2)(b) to the ground and handcuff him.

PO DeRise could not recall if he had seen PO Guan use his pepper spray (BR 7). PO Guan's BWC (BR 1, 08:00) does not appear to show that PO Guan pepper sprayed § 87(2)(b) and neither does PO DeRise's (BR 1, 07:50).

Based on the BWC footage, it is apparent that PO DeRise was mistaken in his belief that he had successfully placed a cuff on § 87(2)(b) before he used pepper spray against him.

Patrol Guide Procedure 221-13 (BR 9) directs that officers will use only the reasonable force necessary to gain control or custody of an emotionally disturbed person. When there is time to negotiate or de-escalate, all time necessary to ensure the safety of all individuals concerned will be used. The safety and well-being of the emotionally disturbed person, as well as all persons present, is of paramount concern. If an officer is faced with an emotionally disturbed person whose actions constitute an immediate threat of serious physical injury or death to themselves or others, the officer should make every effort to de-escalate the situation through tactical communication, if feasible and consistent with personal safety. The officer should use crisis communication techniques to gain voluntary compliance. Patrol Guide Procedure 221-01 (BR 14) similarly directs that all officers must use reasonable force and prioritize de-escalation whenever possible. When appropriate and consistent with personal safety, officers will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force.

NYPD Patrol Guide Procedure 221-07 (BR 10) states that pepper spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody, or who are exhibiting active aggression, or to prevent individuals from physically injuring themselves, officers, or other civilians. Officers should not deploy pepper spray in situations that do not require the use of physical force. Active resistance includes physically evasive movements to defeat an officer's attempt at control, including bracing, tensing, pushing, or verbally signaling an intention to avoid or prevent being taken into or retained in custody. Active aggression is a threat or overt act of an assault (through physical or verbal means), coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent. NYPD Patrol Guide Procedure 221-07 also directs officers to only deploy pepper spray from a minimum distance of three feet.

§ 87(2)(g)

§ 87(2)(g)

PO DeRise suddenly and immediately began trying to forcibly cuff § 87(2)(b) while telling him that he was going to the hospital. § 87(2)(b) reacted with apparent confusion, tried to pull his hands away, and tried to walk away.

§ 87(2)(g)

Within a few seconds, PO DeRise deployed the spray from within the three-foot minimum distance prescribed by the Patrol Guide. § 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Guan has been a member of the NYPD for one year and this is the first CCRB complaint to which he has been a subject.
- PO DeRise has been a member of the NYPD for 19 years and has been a subject in 24 CCRB complaints and 55 allegations, of which eight were substantiated:
 - 201204122 involved a substantiated allegation of discourtesy against PO DeRise. The Board recommended Command Discipline and the NYPD did not impose any discipline.
 - 201410499 involved a substantiated allegation of refusal to process civilian complaint against PO DeRise. The Board recommended Command Discipline B and the NYPD imposed Command Discipline A.
 - 201607619 involved substantiated allegations of threat of arrest, threat of force, and discourtesy against PO DeRise. The Board recommended Command Discipline B. There is no record of the NYPD having imposed any discipline.
 - 202002691 involved substantiated allegations of physical force and discourtesy against PO DeRise. The Board recommended Charges, but the case was closed by the APU without serving charges.
 - Five complaints and 13 allegations against PO DeRise remain under investigation.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of October 10, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 12**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Julia Sapienza</u>	<u>Inv. Julia Sapienza</u>	<u>October 10, 2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>November 7, 2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date